LAST WILL AND TESTAMENT
OF
STEPHANIE BEALS SWANEY

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STEPHANIE BEALS SWANEY

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ARTICLE ONE
DECLARATION OF LAST WILL AND TESTAMENT

I, **STEPHANIE BEALS SWANEY**, domiciled in Alexandria, Louisiana, and being of sound mind, do make this my Last Will and Testament ("Will"), hereby revoking all former wills, codicils or testamentary instruments made by me. All references made in this Will shall be construed as referring to this Last Will and Testament only.

ARTICLE TWO
MY FAMILY

I am not married. I have no children born or adopted.

ARTICLE THREE
PAYMENT OF DEBTS, TAXES, AND ADMINISTRATIVE EXPENSES

My executor shall pay all expenses of my last illness and funeral, costs of administration including ancillary, costs of safeguarding and delivering legacies, and other proper charges against my estate (excluding debts secured by real property or life insurance). I direct that all costs, fees, expenses, my unprescribed just debts, funeral, and administrative expenses, be paid from the assets of my succession and apportioned as provided by law. All taxes imposed by either state or federal governments by reason of my death, shall be apportioned among all legatees in accordance with the value of the interest of each person interested in the estate bears to the total value of the interests of all persons interested in the estate as provided in La. R.S. 9:2432(A), or the corresponding provision of any future law of the State of Louisiana; provided, however, the amount, if any, by which the estate and inheritance taxes shall be increased as a result of the inclusion of property in which I may have a qualifying income interest for life shall be paid by the person holding or receiving that property. Interest and penalties concerning any tax shall be paid and charged in the same manner as the tax. After the payment or providing for the afore described charges, expenses and taxes, I bequeath and devise my remaining property as set forth below.

ARTICLE FOUR
TANGIBLE PERSONAL PROPERTY

At my death, I may have prepared a handwritten and/or signed list defining the person to whom I wish certain items of tangible personal property to pass. I intend that list to constitute a valid Codicil to my Last Will and Testament and as a consequence of which the property listed thereon shall pass as a special legacy in accordance with such list. I understand that my list must describe both the items

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that I am giving and the persons who are to receive those items with reasonable certainty; that if the person named in my list dies before I do, and I have not included further directions in my list, the gift to that person will lapse and fall into the residue of my estate. All costs of packing, shipping, and insuring such items for distribution to my beneficiaries shall be ad-ministration costs of my estate and shall not be charged to my beneficiaries.

My Independent Executor shall distribute any remaining tangible personal property among the Residuary Legatees in the manner they shall decide and in accordance with the distribution percentages of Article Five. If the Residuary Legatees are unable to decide among themselves, my Independent Executor shall distribute it among the Residuary Legatees in an equitable manner. My Independent Executor may use a lottery or rotation system or any other method of allocation to determine the order of selection and distribution of any property among the Residuary Legatees. Alternatively, my Independent Executor may sell all or any portion of the property and distribute the net proceeds to the Residuary Legatees. My Independent Executor shall incur no liability to any party for its decision with respect to either the division or sale of my tangible personal property, and any decision made by my Independent Executor shall be final and binding on all of the beneficiaries.

4.01 Definition of Tangible Personal Property

For purposes of this Article, my tangible personal property shall include but not be limited to my household furnishings, appliances and fixtures, works of art, motor vehicles, pictures, collectibles, apparel and jewelry, books, sporting goods, and hobby paraphernalia. The tangible personal property shall not include any property that my Independent Executor, in its sole and absolute discretion, determines to be part of any business or business interest owned by me.

4.02 Incumbrances and Incident Expenses of Tangible Personal Property

My Independent Executor shall distribute my tangible personal property subject to any liens, security interests, or other encumbrances on the property. My Independent Executor shall pay, as an administration expense, the reasonable expenses of storing, insuring, packing, transporting and otherwise caring for any tangible personal property until each item of property is actually delivered to the appropriate legatee.

ARTICLE FIVE
RESIDUARY DISTRIBUTION

Subject to any special bequests set forth above, I bequeath and devise the rest, residue and remainder of all property of which I die possessed, whether separate or community, movable or immovable, tangible or intangible, and wheresoever located unto my Residuary Legatees named hereinbelow and in the proportions allocated as set forth in this Article.

5.01 Residuary Legatees' Names and Shares

My Residuary Legatees' names and shares are as follows:

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Residuary Legatee Name	Relationship	Share
MICHAEL EUGENE DOWTY	spouse	100%

5.02 Distribution of Michael Eugene Dowty's Share

My Independent Executor shall distribute **MICHAEL EUGENE DOWTY'S** share Outright. If **MICHAEL EUGENE DOWTY** shall not have survived me, or if he disclaims all or any part of the property bequeathed to him herein, leaving a child or children who survive me, his share shall be distributed to his Descendants, equally by roots, subject to all other Articles contained in this Will. If there are no remaining Descendants of **MICHAEL EUGENE DOWTY**, then **MICHAEL EUGENE DOWTY'S** share will be distributed, pro rata, to the Residuary Legatees who shall survive him, or their Descendants, by roots, if not surviving, as provided for in this Article.

ARTICLE SIX
UNDER-AGE BENEFICIARIES

Notwithstanding any provision to the contrary, my Independent Executor in his or her sole, absolute and unreviewable discretion may distribute to the Under-Age Trustee named in this Article, to hold in trust, any bequest for the benefit of any contingent legatee, incidental legatee, named legatee, or substitute legatee by representation, if said beneficiary has not attained eighteen (18) years of age. Said Trust shall be held as a separate fund or share, vested in the Under-Age Beneficiary, and my Trustee(s) shall have all the powers granted in the Article, below, entitled General Trustee Powers. My Trustee shall then apply for a taxpayer identification number, and operate said share as a Separate Share Trust, and shall administer said Trust for the benefit of the Under-Age Beneficiary, as set forth in this Article.

6.01 Establishment

The trust is established pursuant to the provisions of the Louisiana Trust Code, particularly La. R.S. 9:1721, *et seq.*, as now written or hereafter amended, for the benefit of each Under-Age Beneficiary described above in this Article as both income and principal Beneficiary.

6.02 Trust Name

The trust shall be known as the "**STEPHANIE BEALS SWANEY TESTAMENTARY TRUST F/B/O UNDER-AGE BENEFICIARY**".

6.03 Trustees

A. Trustee

The parent, tutor, or legal guardian of the Under-Age Beneficiary shall serve as the Trustee of any Under-Age Beneficiary's Trust created under this Article, provided such

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parent, tutor, or legal guardian is a Descendant, named Residual Legatee, Family Member, or spouse of a Family Member.

Upon attaining eighteen (18) years of age, the Under-Age Beneficiary may, in his or her sole discretion, serve as sole Trustee, to be effective upon notice in writing delivered to the then serving Trustee.

6.04 Trust Administration

Income and/or principal from said Trust, up to the whole thereof, may be used for the Under-Age Beneficiary. Distributions of said income and/or principal shall be made at times or from time to time, at the sole, absolute and unreviewable discretion of the Trustee. The Trustee may also, at his or her sole, absolute and unreviewable discretion, make a distribution of income and/or principal to the tutor, guardian or legal representative, to accommodate the Under-Age Beneficiary at the tutor, guardian, or legal representative's residence. Costs may include those required to maintain the residence, or construct an addition, or make other improvements. Other costs may include the increased cost of a purchase of a new residence by the tutor, guardian, or legal representative to better house the beneficiary. It is my request that the Trustee obtain pro rata title to any improved or new property to the extent of the improvements made. In addition, by way of example but not by way of limitation, the Trustee may pay or apply trust income and/or principal, in my Trustee's sole, absolute and unreviewable discretion, for expenses customarily related to obtaining an education at any academic level, for wedding expenses of a beneficiary, to assist an Under-Age Beneficiary in purchasing a primary residence, or to assist an Under-Age Beneficiary in relocating or entering a trade or profession.

The Trustee may consider the Under-Age Beneficiary's own resources at such time or times as distributions are requested. Notwithstanding, if any Under-Age Beneficiary is a child of the Trustee, no such payments shall be made to discharge the Trustee's legal obligation of support under state law.

6.05 Trust Distributions

A. Distribution Upon Attaining Stated Age

Subject to the power and sole, absolute and unreviewable discretion of the Trustee to terminate the trust prior to the Beneficiary attaining the stated age set forth below, upon an Under-Age Beneficiary attaining eighteen (18) years of age, the trust shall terminate and the Trustee shall distribute the principle and accumulated income outright to the beneficiary.

6.06 Substitution of Beneficiaries Upon Death of Under-Age Beneficiary

A. With Descendants

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If any Under-Age Beneficiary should die with descendants prior to full distribution of such Beneficiary's share, , then to the maximum extent permitted by La. R.S. 9:1973, *et seq*., the interest of that Beneficiary shall vest in the descendants of the predeceased Beneficiary, equally by roots, as substitute Beneficiaries, subject to the terms of this trust, and shall terminate in accordance with the termination provisions set forth in Section 6.05 above, unless sooner terminated in accordance with the Article, below, entitled General Trustee Powers.

B. Without Descendants

Any Beneficiary should die without descendants prior to full distribution of such Beneficiary's share, then to the maximum extent permitted under La. R.S. 9:1973, *et seq*., as now written or hereafter amended, that Beneficiary's interest shall vest in the surviving Residuary Legatees set forth above in the preceding Article, equally or, if any of them is then deceased, in his or her children by representation, as substitute beneficiaries, and the trust as to their interest shall continue as to such substitute beneficiaries, and shall terminate in accordance with the termination provisions as set forth in Section 6.05 above, unless sooner terminated in accordance with the Article, below, entitled General Trustee Powers; provided, however, if there are no surviving Residuary Legatees set forth above in this Article, or surviving children of such predeceased Residuary Legatee, then said predeceased Beneficiary's interest shall vest in the intestate heirs at law of the Beneficiary, equally by roots, outright free of trust, subject to the terms of the trust set forth in this Article, and shall terminate in accordance with the termination provisions as set forth in Section 6.05 above, unless sooner terminated in accordance with the Article, below, entitled General Trustee Powers.

ARTICLE SEVEN
APPOINTMENT, RESIGNATION, AND REMOVAL OF TRUSTEES

The resignation, removal, or vacancy of any Trustees of any Under-Age Trust shall be in accordance with the provision set forth in this Article.

7.01 Number of Trustees

Notwithstanding anything to the contrary hereunder, any Trust created by this Will authorizes the appointment of three (3) Trustees, but at no time shall it be required to operate with more than one (1) Trustee.

Any discretionary distributions to a beneficiary who is also a fiduciary hereunder shall not be made unless a Co-Trustee consents in writing to the distribution; provided, however, nothing shall prohibit termination of an Under-Age Beneficiary Trust upon the Under-Age Beneficiary attaining the stated age for distribution and termination of the Under-Age Beneficiary Trust. If no Co-Trustee is then acting, then the first Successor Trustee shall act as Co-Trustee for purposes of said distribution only. The Co-Trustee or Successor Trustee consent shall be based upon its sole, absolute and unreviewable discretion.

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7.02 Limitations on Serving as Trustee

The following limitations shall apply to all powers granted under this Article to serve as Trustee or to remove and appoint Trustees.

A. Age Restriction on Trustees

Notwithstanding any other provision in this Article, any non-professional Trustee must be at least age eighteen (18) to serve as Trustee. The Trustees, the order of their appointment and all other provisions of this Article must be complied with to identify the proper trustees to act and any release of duties and responsibilities of any trustees no longer needed pursuant to the age restrictions of this paragraph.

B. Beneficiary as Trustee

Notwithstanding any other provision in this Testament, no beneficiary may serve as Trustee of any Trust for which they are entitled to receive mandatory or discretionary distributions of income or principal.

7.03 Appointment of Trustees

A. Appointment of Trustee for the Under-Age Trust

The Trustee and successor Trustees of any Under-Age Trust created under this Will shall be the person(s) or entity named in such Trust.

A Trustee shall serve as Trustee until its successor shall accept office and shall execute all instruments and do all acts necessary to vest title of the Trust Estate in the Successor Trustee without Court accounting.

If a Successor Trustee is unwilling or unable to serve, the next following Successor Trustee shall serve until the Successor Trustees so named have been exhausted.

If any corporate Trustee shall merge or consolidate with another state or federal corporation, or sell or transfer substantially all of its business assets to another state or federal corporation, the corporation resulting from such merger, or the consolidation of the corporation to which it is converted or to which such sale or transfer shall be made, shall thereupon become the Trustee hereunder with the same effect as though originally named.

If no person or entity is named as Trustee of the Under-Age Beneficiary Trust, the Trustee of such Trust shall be appointed by a court of competent jurisdiction, who shall be an individual, corporate fiduciary, attorney, or CPA who is unrelated by blood or marriage to the beneficiary, or a Family Member.

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The nature and extent of Trustee services to be provided, as well as the compensation for such services, shall be reflected in an instrument signed by both the beneficiary Trustee and the Co-Trustee selected by the beneficiary.

7.04 Duties and Responsibilities of Successor Trustees

No Successor Trustee shall have any responsibility for any acts or omissions of any prior Trustee or any duty to audit or investigate the accounts or administration of any such Trustee. No Successor Trustee shall have any duty to take action to obtain redress for breach of trust unless requested to do so in writing by a person who has a present or future beneficial interest under a Trust created hereunder. Any claim or action against any previous Trustee must in any event be asserted or filed by any beneficiary within one year after the appointment of a Successor Trustee.

7.05 Resignation of Trustees

The Trustee of any trust hereunder, including any Successor Trustee, may resign by delivery of thirty days' written notice of resignation to all of the current beneficiaries of such Trust pursuant to Section 14.01(E).

7.06 Under-Age Trustee Vacancy

In the event of the resignation, removal, incompetency, incapacity, or death of a final named Under-Age Trustee, a successor Under-Age Trust Trustee shall be appointed by a court of competent jurisdiction.

ARTICLE EIGHT
GENERAL TRUSTEE POWERS

8.01 Powers of Trustee

Except as otherwise specifically provided in this Will, a person or entity serving as a Trustee may exercise without prior approval from any Court, all the powers granted under this Will and any other powers conferred by law, including, without limitation, those powers set forth under the laws of the State of Louisiana or any other jurisdiction whose law applies to this will or any Trust created herein. The powers set forth in La. R.S. 9:2111 *et seq.* are specifically incorporated into this Will.

The Trustee shall exercise these powers in the manner the Trustee determines to be in the best interests of the beneficiaries. The Trustee shall not exercise any of its powers in a manner that is inconsistent with the right of the beneficiaries to the beneficial enjoyment of the Trust Property in accordance with the general principles of the law of Trusts.

The Trustee may freely act under all or any of the powers given it by this Will in all matters concerning the Trust after exercising its best judgment based upon all the circumstances of

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any particular situation as to the best course to follow in the interest of the Trust and the beneficiaries without the necessity of obtaining the consent or approval of any Court and notwithstanding that the Trustee may also be acting individually or as Trustee of other trusts or as agent for other persons or corporations interested in the same matters as a Stockholder, Director, member, or otherwise, provided that it shall exercise such powers at all times in a fiduciary capacity in the interest of any beneficiaries hereunder.

The Trustee's determination regarding the amount of any discretionary payment of income or principal established hereunder, and of the advisability thereof, shall be final and conclusive on all persons, including, but not limited to, those having or claiming any interest hereunder, and upon making any such determination and payment thereof, the Trustee shall be released fully from all further liability or accountability therefore, provided, however, no Trustee may exercise his or her discretion with respect to any distribution from a Trust created under this Will to any person the Trustee is legally obligated to support if the distribution in any way discharges the support obligation of the Trustee.

In addition to the powers granted by State law, the Trustee shall have all of the powers cited in this Article. To the extent there is any conflict between the powers granted under this Article and those granted by the laws of the State of Louisiana, the provisions of this Article shall prevail.

A. Specific Authorization for Single Signature

Any bank, brokerage firm, insurance or other financial institution, or any other third party doing business with the Trustee, is hereby authorized to open any account in such a manner as to permit the transaction of any business upon (1) the signature of any individual Testatrix acting as Trustee or (2) the consent of the majority of appointed Trustees (if none are a Testatrix) to any one Trustee or a particular Trustee, rather than upon a majority or unanimous consent.

In order to facilitate transaction of business, the joinder of a Trustee under this section may be indicated as to actions taken with regard to a particular investment account by the Trustee's signature on appropriate signature authorization form. The Trustee's signature authorizing another Trustee to act alone shall constitute that Trustee's joinder with all actions taken regarding the account, unless and until the signature authorization form is changed, or the bank, brokerage firm, insurance or other financial institution, or any other third party doing business with the Trustee is expressly notified in writing of the Trustee's withdrawal of concurrence.

B. General Authority

Generally, the Trustee shall have the authority to:

1. hold any or all of the Trust Estate in the form of investment in which it is received;

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2. make distributions of principal to or for the benefit of any income beneficiary, principal beneficiary, or Residuary Beneficiary;

3. sell at public or private sale, to mortgage, pledge, or hypothecate, or to exchange or lease (including lease for a period extending beyond the terms of the Trust) any stocks, notes, securities, financial holdings, or investments authorized herein, real estate, minerals, and other property upon such terms, cash or credit, or both, as the Trustee may deem advisable;

4. buy or sell movable or immovable property for the trust from or to himself, herself or itself, and if the Trustee is a corporate trustee from or to an affiliate, and if the Trustee is an individual trustee from or to his relative, employer, partner or other business associate pursuant to La. R.S. § 9:2085 and La. R.S. § 9:2199, as the same may be amended from time to time.

5. invest and reinvest the Trust Estate in investments of any kind, real or personal, including, without limitation, stocks, bonds, notes, mortgages, land, minerals, royalties, leaseholds, and participation in partnerships, joint ventures, and other business enterprises and to write or purchase call or put options and other derivative securities;

6. construct, repair or demolish any improvements upon any real property;

7. participate in any reorganization, consolidation, merger, or dissolution of any company, corporation, or limited liability company, the stocks, bonds, or securities of which may be held at any time;

8. hold investments or any part of the Trust in common or undivided interest with others;

9. establish bank accounts of any type at any banking institution the Trustee deems appropriate;

10. demand, receive, provide receipt for, and collect all rights, money, properties, or claims to which the Trust may be entitled, and to compromise, settle, or abandon any claim in favor of or against the Trust;

11. borrow funds for the Trust in such amounts and for such purposes as my Trustee may deem proper and to purchase property on the credit of the Trust and in connection therewith, or in connection with such borrowing, to execute and deliver promissory notes or other evidence of indebtedness of the Trust, and to mortgage or pledge all or any part of the Trust to secure payment of such indebtedness and to repay such indebtedness out of the Trust;

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12. employ agents, legal counsel, accountants, financial advisors, brokers, and other professionals or consultants, including any acting Trustee who is also a professional, and to pay their fees and expenses including expenses of a Trustee's professional service firm for services provided outside his or her capacity of serving as Trustee;

13. serve as an officer, director, manager or employee of any business entity in which the Trust has an interest or to vote in person or by proxy on shares of stock or membership interest which may be a part of the Trust Estate;

14. manage, control, operate, invest, reinvest, sell, exchange, lease, mortgage, encumber, and/or deal with the property of the Trust for and on behalf of the Trust and the beneficiaries to the same extent and with the same powers that any individual would have in respect to his or her own property;

15. consolidate the Trust with any other trust provided said other trust has the same beneficiaries, generation-skipping transfer tax ratios, and similar trust terms so as not to conflict with the intentions set forth in the Trust.

8.02 Additional Trustee Powers

The following provisions shall apply to each trust established herein the preceding Articles wherein a Trustee has been designated to hold, administer and distribute the Trust Estate, except to the extent of any inconsistency.

In addition to the powers granted by State law, the Trustee shall have all of the powers cited in this Section. To the extent there is any conflict between the powers granted under this Section and those granted by the laws of the State of Louisiana, the provisions of this Section shall prevail.

A. Additional Property

The Trustee may receive additional property into the trust from third persons, provided, however, that any such additions shall be subject to the all the terms and conditions of the trusts set forth in this Article and the preceding Articles. Unless it is specified in such addition that the same shall be specially allocated, in whole or in part, to a specific Trust or to the share(s) of one or more Beneficiary(ies), then any such addition shall be allocated pro rata among all of the Beneficiary(ies)' shares.

B. Electronic Data

The Trustee shall exercise all powers of absolute ownership regarding any computer of mine, any data storage device or medium of mine, any electronically stored information of mine, any user account of mine, and any domain name of mine. This authorization constitutes my consent under the Electronic Communications Privacy Act of 1986, as

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amended; the Computer Fraud and Abuse Act of 1986, as amended; and any other applicable federal or state data privacy law;

C. Corporate Trustee

If the Trustee is a corporate Trustee, it shall have the following powers:

1. To invest Trust funds in certificates of deposit or savings accounts of the corporate Trustee, or the certificates of deposit or savings accounts of an affiliate, or in a common trust fund maintained by the Trustee;

2. To make general deposit of Trust funds in its own banking department or that of an affiliate, without the necessity of obtaining security of any kind.

D. Facility of Payment

A Beneficiary may elect to have the Trustee retain all or a portion of the Trust income or principal that the Trustee may, in its sole and absolute discretion, otherwise elect to distribute to or for the benefit of such Beneficiary. If a Beneficiary is suffering from a legal incapacity or disability, the Trustee may make any payment in its discretion, in any one of the following ways:

1. Take any action necessary to have a legal tutor or curator appointed for such Beneficiary, if none has already been appointed, and make the payment to his or her legal representative.

2. During any period in which the Trust does not own any S Corporation stock, make payment of expenses incurred, or to be incurred directly to the person entitled to receive such payment. The decision of the Trustee to make direct payments or to apply funds on behalf of such Beneficiary shall be conclusive upon all parties.

3. Name a custodian for such Beneficiary under the Louisiana Uniform Transfers to Minors Act, La. R.S. 9:751 et seq, and make such payment to such custodian.

E. Payment of Expenses

The Trustee may pay from the Trust all taxes due by the Trust and any and all expenses incurred in connection with the administration thereof, such as fees for the preparation of income tax returns, legal fees, compensation of the Trustee, periodic accountings, or any other expenses. All such charges and any compensation payable by the Trust shall be charged against income to the extent income is available and any excess against principal, provided, however, no such charges shall be in violation of the qualified subchapter S trust requirements of Section 1361(d)(3) of the Code. Notwithstanding any provision to the contrary, no Trustee other than a Trustee may make discretionary distributions to or for the benefit of a Beneficiary.

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F. Banking and Financial Transactions

Whenever two or more Co-Trustees are serving as Trustees of the Trust, or any separate share trust created hereunder, any Trustee may act unilaterally on behalf of and without consent of any other Co-Trustee to conduct all banking, financial, or insurance business for the Trust, or any separate share trust created hereunder, including but not limited to opening and closing accounts for the Trust, being a signer on all accounts of the Trust, negotiating or writing checks on accounts of the Trust, making deposits on behalf of the Trust, and opening and closing safety deposit boxes of or for the Trust and with full power to do and act in connection with such box(es), including but not limited to the power to remove all or any part of the contents therefrom ("Financial Transactions").

Notwithstanding the authorization for single signatures of Trustees for Financial Transactions, whenever two or more Co-Trustees are serving, each Trustee asserts, agrees, and acknowledges that it is their duty to consult and confer with each other Co-Trustee and to act in agreement as may be required under Louisiana or any other state law to ensure notice to and the requisite consent of all Co-Trustees to any particular Financial Transaction.

G. Investments

The Trustee shall have, in the investment and reinvestment and administration of the securities and property forming the corpus of the Trust, the widest latitude and authority permitted by Louisiana Law. The Trustee shall be fully authorized to hire and/or contract with one or more investment advisors ("Investment Advisor" or "Investment Advisors") and further shall have the ability to delegate investment discretion to such an investment advisor. The Trustee shall not be liable for any loss caused by or resulting from any action taken or omitted in reliance on any recommendation by the Investment Advisor regarding the investment of Trust assets, so long as the selection of the Investment Advisor and the reliance on the advice was in good faith.

H. Retention of Unproductive Assets

Subject to any contrary provision relating to a Spousal Right To Convert Unproductive Property (if any), the Trustee is authorized to accept and retain any property donated to the Trust for as long a period of time as the Trustee may think proper, even though such property is of a kind or in an amount that ordinarily would not be considered suitable for trust investments.

I. Combination of Trusts

Subject to Provisions Relating To S Corporation Stock (QSST) set forth below in this Article, the Trustee shall have the power to commingle the properties of the Trust with the property of any other separate share of the Trust created herein, of any other trust created by the Testatrix, for investment, administrative, or other purposes, allotting to

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each separate trust an undivided interest in the commingled trust property which shall always be equal to that trust's proportionate contribution to the commingled trust property, and to give one accounting for the Trust and any other trust created by the Testatrix; provided, however, that any terms of the trust before combination that would affect the terms of distributions pursuant to the preceding Articles must remain substantially the same in the combined trust created and no Trustee other than the Trustee may make discretionary distributions to or for the benefit of a Beneficiary.

J. Merger of Trusts

Subject to Provisions Relating To S Corporation Stock (QSST) set forth below in this Article, if at any time the Trustee of any trust created by the Trust shall also be acting as the Trustee of any other trust (herein this section referred to as the "Other Trust") for the benefit of the same Beneficiary and upon substantially the same terms and conditions, the Trustee may transfer and merge all of the assets then held in the Trust or in any trust created hereunder to and with the Other Trust and thereupon terminate the Trust. The Trustee is further authorized to accept the assets of the Other Trust that may be transferred to the Trustees of the Trust and to administer and distribute such assets in accordance with the provisions of the Trust. No such merger may occur if as a consequence thereof the Trust will, or may, become revocable, or if any breach of the provisions of the Trust pertaining to distributions or otherwise will or could occur, or compromise the spendthrift provisions set forth in this Will. No Trustee other than the Trustee may make discretionary distributions to or for the benefit of a Beneficiary.

K. Division of Trusts

Subject the Provisions Relating to S Corporation Stock (QSST) set forth below in this Article, the Trustee is authorized to hold property otherwise directed to be added to or consolidated with the trust property of any trust held hereunder as a separate trust having terms identical to the terms of the existing trust; to sever any trust on a fractional basis into two or more separate trusts for any reason; to segregate by allocation to a separate account or trust a specific amount out of, a portion of, or specific assets included in, the trust property or any trust held hereunder to reflect a partial disclaimer or refusal or for any tax or other reason in a manner consistent with any applicable rules or regulations. Income earned on a segregated amount, portion or specific assets after the segregation is effective shall be allocable to such amount, portion or specific assets. In administering the trust property of any separate account or trust and in making applicable tax elections, the Trustee shall consider the differences in federal tax attributes and all other factors the Trustee believes pertinent and the Trustee may thereafter make disproportionate distributions from the separate trusts created. A separate trust created by severance or segregation shall be treated as a separate trust for all purposes from and after the date designated by the Trustee as the effective date of the severance or segregation and shall be held on terms and conditions that are substantially the same as the terms of the trust before severance or segregation; provided, however, that any terms of the trust before

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severance or segregation that would affect distributions pursuant to the preceding Articles, qualification of the trust for any federal tax deduction, exclusion, election, exemption or other special federal tax status, must remain substantially the same in each of the separate trusts created. No such severance or segregation may occur if as a consequence thereof the Trust will, or may, become revocable, or if any breach of the provisions of the Trust pertaining to distributions or otherwise will or could occur.

L. Income and Principal

Except as otherwise provided herein and subject the Provisions Relating to S Corporation Stock (QSST) set forth below in this Article, the Trustee in the administration of the Trust, shall decide and determine to the exclusion of all other persons what shall constitute principal and income of the Trust, and the allocation thereof to the Trust; whether to charge to income or principal or apportion between them any expense of the Trust, as the Trustee may determine in the sole discretion of the Trustee; and generally to determine all questions as between principal and income and to credit or charge to either or to apportion between them any receipt or gain and any charge, disbursement, or loss as is deemed advisable in the circumstances of each case as it arises, notwithstanding any statute or rule of law for distinguishing income from principal or any determination of the Courts. However, notwithstanding the foregoing, the Trustee shall in no event charge any expense or any other charge to income, or exercise any power to adjust principal and income pursuant to La. R.S. 9:2158 et seq, if such charge would violate the qualified subchapter S trust requirements of Section 1361(d)(3) of the Code.

M. Discretionary Termination

Notwithstanding any other provision to the contrary, the Trustee may terminate any of the separate trusts established in the preceding Articles, in whole or in part, at any time prior to the stipulated termination date, whenever in the Trustee's discretion, it is appropriate or desirable to do so, as for example, but without limitation, when the trust property no longer justifies the expenses of trust management, or if the Trustee considers such distribution to be in the best interest of the beneficiary, considering the demonstrated ability of the beneficiary to handle money and property wisely, and to use judgment, prudence and discretion, and considering any other factors the Trustee may consider relevant. In exercising this purely discretionary power to terminate the trust or any separate trust, the Trustee shall not be subject to the fiduciary duty of impartiality and may apply any criteria that it deems necessary in its sole and absolute discretion to determine whether or not to exercise the power of termination. The Trustee may exercise the power of termination even though the beneficiary is restrained from alienating her interest in the trust. This provision does not apply to any Special Needs Trust or Supplemental Needs Trust created in this Will.

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N. Amend Administrative Provisions

The Trustee may amend any provision of the Trust in order to:

1. Alter the administrative or investment powers of the Trustee to comply with any changes in law;

2. Add or modify terms of the trust to reflect tax or other legal challenges that affect trust administration; provided, however, the terms of the trust that affect trust administration shall not be altered in any way that would compromise the spendthrift protection that would otherwise be afforded to the Beneficiary's interest by operation of law pursuant the following Article; or

3. Clarify or correct ambiguities, including scrivenor errors, that might otherwise require court construction or reformation.

Notwithstanding the foregoing, the Trustee shall not have the power to amend any distributive provision of the Trust, including but not limited to the distributive provisions set forth in the preceding Articles, or to alter the complete and absolute discretion afforded the Trustee in making decisions regarding the distribution of income and/or principal to or for the benefit of a beneficiary. An amendment to the Trust shall be made in a written instrument signed by the Trustee. The Trustee shall mail, by first class mail, a copy of the amendment to the Beneficiary(ies) or their legal representative. Notwithstanding any other provision of this instrument, the Trustee may not amend or modify any power or provision of the Trust so as to expand the Trustee's amending powers or the Trustee's other existing powers, authorities, or discretions. This provision shall not prevent the Trustee from making amendments to correct scrivener's errors as to the Trustee's powers, authorities, and discretions, or to amend the Trust in any manner required for the sole purpose of ensuring that the powers, authorities, and discretions of the Trustee remain legally binding and valid under state and federal law.

8.03 Office of the Trustee

A. Security

The Trustee shall not be required to post bond or security of any kind.

B. Taxes

The taxes due by the trust and any and all expense incurred in connection with administration thereof, such as fees for the preparation of income tax returns, legal fees, periodic accountings, or any other expenses, shall be charged entirely against the income of the trust to the extent that income is available and any excess charged against the principal.

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Stephanie Beals Swaney, Testatrix

C. Reasonable Compensation and Expenses

Any individual serving as Trustee of the Trust shall be entitled to reasonable compensation in accordance with the laws of the State of Louisiana. Notwithstanding the above, any bank, financial institution, trust company, corporate fiduciary, attorney, or CPA serving as Trustee shall be entitled to receive the rate of compensation it customarily charges for rendering such services at the time such services are rendered. The Trustee shall receive reimbursement for all expenses incurred in the administration of the Trust. All such compensation and expenses shall be charged first against ordinary income, then capital gains, then unrelated business taxable income, then tax-exempt income, and then, if income is insufficient, against principal; provided, however, no such charge shall violate the qualified subchapter S trust requirements of Section 1361(d)(3) of the Code.

D. Accounting

The Trustee may render an account of those aspects administration of the Trust reserved to such Trustee to the beneficiaries hereof in accordance with the provisions of §2088 of the Louisiana Trust Code, or as it may hereafter be amended, but is not obligated to do so unless such an account is demanded by a beneficiary, or his or her legal representative.

E. Institutional Trustee

Any institutional Trustee must have the following characteristics to become and remain Trustee: (1) the institutional Trustee must be a bank, financial institution or trust company; (2) have fifty million dollars ($50,000,000) minimum in net assets; (3) have liability insurance covering errors, omissions and acts of the trustee which names the trust as an additional insured in an amount equal to the value of trust corpus; and (3) have a trust department.

F. Trustee Decisions

All authority granted to or vested in any Trustee by any provision of the Trust is to be exercised in the sole and absolute discretion of the Trustee. Where two Co-Trustees are serving as Trustees, the decision of the Co-Trustees must be unanimous to take action on behalf of the Trust. Where more than two Co-Trustees are serving as the Trustees, the decision of a majority of such Co-Trustees shall constitute the action of the Trustees, and shall be binding upon the Trust, the beneficiaries of the Trust and all persons transacting any matter with the Trust. The Co-Trustees may appoint one of the Co-Trustees to administer the day-to-day affairs of the Trust.

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G. Trustee Signatures

Except as otherwise specifically provided herein, where two Co-Trustees are serving as the Trustees hereunder, the signatures of both Trustees shall be necessary to implement any action of the Trustee taken pursuant to this Article, or to perform and/or implement any other duty of the Trustee under the Trust. Where more than two Co-Trustees are serving as the Trustees hereunder, the signatures of a majority of the Co-Trustees shall be necessary to implement any action of the Trustee taken pursuant to this Article, or to perform and/or implement any other duty of the Trustee under the Trust.

H. Standard of Care

The Trustee shall be responsible only for reasonable care, diligence and business prudence in the administration of the Trust, and is relieved from all liability and responsibility in connection with the administration of the Trust, except any such liability and responsibility as may result from the Trustee's bad faith in the administration of the trust, or from the Trustee's gross negligence or gross misconduct, provided however that nothing contained herein shall relieve a Trustee of such Trustee's duty of loyalty to the Beneficiaries.

I. Effect of Trustee's Acts

Any instrument executed by the Trustee shall be binding upon all parties hereto and on all Beneficiaries hereunder with respect to the powers reserved to such Trustee as set forth in this Article, as the case may be.

J. Application of Property

No person dealing with the Trustee shall be liable to see to any application of any money or other property delivered to the Trustee.

K. Restrictions on Powers

Any beneficiary of any trust created hereunder acting as a Trustee hereunder, shall be disqualified from exercising any power to make any discretionary distributions of income or principal to himself or herself, or from satisfying any of his or her legal obligations, or from making discretionary allocations in his or her own favor of receipts or disbursements as between income and principal, unless specifically provided for.

The above shall not prevent a beneficiary Trustee from making distributions to himself or herself that are consistent with the distributions among a class of beneficiaries required hereunder or made equally among the beneficiaries.

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L. Self-Serving Acts

The Trustee is authorized to conduct self-serving transactions otherwise prohibited by La. R.S. 9:2084-86 so long as the acts contradict any limitations otherwise placed upon the Trustee under this instrument. In conducting self-serving acts, the Trustee shall be held to the same standard of skill and care as would pertain if there were no question of self-dealing.

M. Indemnification

No Trustee hereunder shall be liable for acts or omissions in administering the Trust Estate except for the Trustee's own actual fraud, gross negligence, or willful misconduct. If any Trustee becomes liable as Trustee to a non-beneficiary for any matter not within the Trustee's control, such Trustee shall be fully indemnified and held harmless by the Trust Estate and any trust created hereunder giving rise to such liability, as the case may be, against and in respect of any damages that such Trustee may sustain, including without limitation, reasonable attorney's fees.

8.04 Business Interests

A. Transfers to Trust

As to each and any corporation, partnership, limited liability company, or other business entity, public or private (for purposes of this Section, each such corporation, partnership or other business entity is hereafter referred to as the "Entity" or "Entities" as the context may require), in which the Trust holds, acquires, or may acquire any interest, the Trustee is hereby authorized to execute any and all agreements and contracts the execution of which is a condition to the transfer of such property to the Trust.

B. Retention of Business Interest

The Trustee is authorized to retain the shares thereof or interest therein of the Entity for as long as they deem it to be in the best interests of the Trust and the beneficiaries thereof, regardless of any duty to diversify investments, and notwithstanding any other fiduciary obligation which might require them to dispose of such shares or interest other than the obligation to act with reasonable care.

C. Continuation of Business

To the extent permitted by law and the terms of the Trust, the Trustee is authorized to exercise its rights and powers as holder of such shares or interest to effect the continued operation of the Entity.

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D. Sale or Liquidation

The Trustee (to the extent permitted by law and the terms of the Trust) is authorized to exercise its rights and powers as holder of such shares or interest sale or other disposition of such Entity's assets or business(es), or to sell, exchange, offer for redemption or otherwise dispose of the shares of or interest in the Entity, or to effect the liquidation or dissolution of the Entity at such time or times and upon such terms and conditions as shall, in the opinion of the Trustee, be in the best interest of the Trust and the beneficiaries thereof.

E. Management

So long as the Trust continues to hold any interest in the Entity, the Trustee is authorized and empowered to participate in the management of the Entity to the extent the Trust's interest therein enables it to do so, without liability or responsibility for any loss resulting from the exercise of the powers hereby granted, or to delegate its managerial authority to others, whether by means of employment, agreement or other arrangements, and they may enter into voting trusts and grant irrevocable proxies, as they deem advisable. Consequently and to these ends, the Trustee is authorized to select, vote for and remove directors of the Entity (if the Entity is a corporation), to take part in the management of the Entity and, to the extent permitted by law, in its managerial capacity to fix, determine or change the policy thereof; to name or change officers, the managing personnel and/or the operating personnel; to employ new management; to reduce, expand, limit or otherwise change the business or type of merchandise dealt in or property invested in the investments held by or product manufactured by or service rendered by the Entity; to require the employees and/or the officers of the entity to file bonds for the faithful performance of their duties; to determine the amount of the bond or bonds to be secured; to select the bonding company; to employ expert disinterested public accountants or engineers to make a full and complete survey or appraisal of the Entity's business and its prospects in the trade; to employ investment or legal counsel (including any firm with which a Trustee hereunder may be associated) whenever the Trustee shall deem it advisable; to charge the cost of all such services against the interest in the Entity held in the Trust assets or to vote or take other action to require the Entity owning said business to pay such expense; to contribute additional working capital or to subscribe to additional stock as it may see fit, and to take all steps and perform all acts which it shall deem necessary or advisable in connection therewith.

F. Holding Office

Any Trustee may act as officer, partner, director, manager or employee of the Entity (or any Entity formed after execution of the Trust as provided in La. R.S. 9:2097, or the corresponding future provision of the Louisiana Trust Code), and the Trustee is specifically authorized to exercise its rights inhering in its ownership as Trustee for the election or appointment of any person or persons, including itself, as director, officer,

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manager or the like. Any Trustee who serves as officer, partner, director, manager or employee of the Entity shall be entitled to receive reasonable compensation for such services notwithstanding that the Trustee may itself (whether individually or Trustee hereunder) be in a position to determine, or control the determination of, the amount of such compensation, and no such person shall be required to furnish any bond in connection with any such employment.

G. Conflicts of Interest

The Testatrix is aware that conflicts of interest may arise by reason of the Trustee's service as officer, partner, director, manager or employee of the Entity and by reason of the Trustee's owning an interest in the Entity in its own right. The Trustee shall, in all respects, be free to exercise the rights and powers conferred without restriction as if no conflicting interest existed. To the extent permitted by law, the Trustee is exempted from the adverse operation of any rule of law which might otherwise apply to it in the performance of its fiduciary duties by reason of conflict of interest. Without limiting the generality of the foregoing, the Trustee shall not have any greater burden of justification in respect of its acts as the Trustee by reason of conflict of interest than it would have in the absence of any such conflict.

8.05 Provisions Relating to Stock (QSST)

A. Subchapter S Corporations Stock

The Trustee may elect to hold capital stock issued by a corporation or other entity taxable as a corporation for federal income tax purposes that is treated, under Code Section 1361(a), as an "S corporation" for federal income tax purposes, as a separate "electing small business trust" or as a separate "qualified subchapter S trust," as defined in Code Section 1361.

The Trustee may consider any changes to the terms and conditions of the Trust that will be required as a result of either election.

The Trustee shall apportion to the electing small business trust a reasonable share of the unallocated expenses of all trusts created under this Will, in accordance with the applicable provisions of the Code and the Regulations, and the Trustee shall administer the Trust as an electing small business trust under Code Section 1361(e).

B. Electing Treatment as a Qualified Subchapter S Trust

The Trustee shall refer to any qualified subchapter S trust using the same name as the Trust to which the stock was originally allocated, followed by the name of the current income beneficiary and the letters "QSST."

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The Trustee shall administer any qualified subchapter S trust in accordance with the same provisions contained in the trust to which the S corporation stock was originally allocated. These provisions shall control the administration of the trust to the extent that they are inconsistent with the provisions of the original trust.

The Trustee shall maintain the qualified subchapter S trust as a separate trust held for the benefit of one beneficiary.

The Trustee shall request the current income beneficiary of the trust to make an election in accordance with Code Section 1361 in order to qualify the trust as a qualified subchapter S trust.

The current income beneficiary of a qualified subchapter S trust is the person who has a present right to receive income distributions from the trust to which the S corporation stock is allocated. A qualified subchapter S trust shall have only one current income beneficiary. If there is more than one current beneficiary, the Trustee shall segregate the S corporation stock into separate qualified subchapter S trusts for each person who has a present right to receive income distributions.

Upon the death of the current income beneficiary or the date on which the qualified subchapter S trust no longer holds any S corporation stock, whichever occurs first (the "QSST termination date"), the Trustee shall distribute, at least annually, all of the trust's net income, as defined in Code Section 643.

The terms of the trust to which the S corporation stock was originally allocated shall govern distributions of principal from the qualified subchapter S trust; provided, however, that until the QSST termination date, the Trustee may only distribute principal to the current income beneficiary of the qualified subchapter S trust.

The Trustee shall characterize receipts and expenses of any qualified subchapter S trust in a manner consistent with Code Section 643(b).

The Trustee may not merge or consolidate any qualified subchapter S trust with the assets of another trust if doing so would jeopardize the qualification of either trust as a qualified subchapter S trust.

C. Amendment to Qualify as QSST

It is the intention of the Testatrix that any Trust or any sub-trust or separate share established hereunder be eligible for treatment as a Qualified Subchapter S Trust (QSST) under Section 1361(d) of the Internal Revenue Code of 1986, as amended, and all provisions of any such sub-trust or separate share shall be interpreted in accordance with this intent. To the extent allowed by La. R.S. 9:2025, or the corresponding future provision of Louisiana Trust Code, the Trustees shall have the power to amend any such sub-trust or separate share for the sole purpose of allowing it to qualify as a QSST.

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D. Beneficiary Election

The beneficiary of any such QSST sub-trust or a separate share (or his or her representative) is strongly encouraged to consider filing the required election under Section 1361(d)(2) of the Code for the treatment of the sub-trust or separate share as a QSST. In the event the beneficiary of any such QSST sub-trust, or a separate share (or his or her representative) fails or refuses to file the required election under Section 1361(d)(2) of the Code, the Trustee may sell (at a price not less than fair market value) the shares of stock for which such election would apply to the corporation (as a redemption), or a third-party, subject to any restrictions on transfer contained in the corporate documents.

E. Voting of Shares

Any voting of shares owned by the sub-trust shall be voted by the Trustee of the respective trust, as the case may be. If more than one Trustee is serving as trustee such Trustee must vote in accordance with the provisions of this Article applicable to Co-Trustees.

8.06 Life Insurance

The Trustee may, in its sole, absolute and unreviewable discretion, purchase policies of life insurance and/or annuities for the benefit of a Trust beneficiary, and may hold and pay for it as an investment and an asset of the estate, any time and upon successive occasions, the premiums to be charged against income or principal, as the Trustee shall determine. Policies of insurance may also be purchased upon other parties for the benefit of the Trust, as the Trustee in its sole and absolute discretion shall deem appropriate.

A. The Trustee shall not be obligated to pay any premiums, assessments, or other charges on any policies not owned by the trust, nor to keep anyone informed with respect thereto. No Trustee shall be responsible for any acts or omissions of the owner in connection with any policy. The owner of each policy in which the Trustee is named beneficiary has reserved all rights, options, and privileges, including all incidents of ownership, conferred by the terms of the policies. Such rights shall include, but not be limited to, the right to change the beneficiaries of such policies.

B. The Trustee is vested with all right, title, and interest in and to all insurance policies owned by the Trust and is authorized to exercise all of the options, benefits, rights, and privileges thereunder, including those which may arise during the lives of any individual insured under any life insurance policy owned by the Trust or related to non-payment of premiums.

C. The Trustee may pay premiums, assessments, or other charges with respect to such policies together with all other charges upon such policies as otherwise required to preserve them as binding contracts, but it shall be under no duty to do so.

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D. If the Trustee intends not to pay any premium, assessment, or other charge with respect to any policy held by it, or otherwise intends to cancel, convert or substantially modify any such policy, it shall first give the insured, or the tutor, curator, guardian or legal representative of the person of an insured under disability, at least fifteen days' advance written notice of its intention to take such action.

E. Any amounts received by the Trustee with respect to any policy as a dividend shall be treated as principal.

F. The Trustee may sell a policy for its Fair Market Value to the insured or a third party.

G. Upon the receipt of proof of death of any person whose life is insured for the benefit of any trust hereunder, or upon maturity of any policy payable to a Trustee prior to the death of the insured, the Trustee shall collect all sums payable with respect thereto and shall thereafter hold such sums as principal of the respective Trust Estate, except that any interest paid by the insurer for a period subsequent to maturity shall be considered as income.

H. The Trustee may accept any payments due it under any settlement arrangement made before or after the death of the insured and may exercise any rights available to it under such arrangement.

I. The Trustee may compromise, arbitrate, or otherwise adjust claims upon any policies, and may, but shall not be required to, exercise any settlement options available under such policies. The receipt of the Trustee to the insurer shall be a full discharge and the insurer is not required to see to the application of the proceeds. The Trustee shall be reimbursed from the Trust Estate for expenses incurred in collecting or attempting to collect any such sum by suit, action or otherwise. The Trustee, however, shall not be under any duty to commence suit or action unless the expenses of the Trustee, including attorney's fees, shall have been advanced or guaranteed to the satisfaction of the Trustee. The Trustee may repay out of the Trust Estate, advances by the Trustee for expenses incurred in collecting or attempting to collect any sum by those means listed above.

J. If the net income and principal is insufficient to pay any premiums due, the Trustee may notify the beneficiaries of the Trust of such insufficiency and give them the opportunity to furnish the necessary funds. If none of the beneficiaries furnish the funds necessary to pay the premiums, the Trustee may, but shall not be obligated to:

> **1.** Obtain funds required to pay such premiums by selling a portion of the principal of the Trust Estate;
>
> **2.** Borrow on the security of such principal by borrowing against the cash surrender value of the policy;

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3. Surrender some policies and use the proceeds to pay the premiums on other policies; or

4. Convert such policies to paid-up or extended term insurance. If no funds are available for the payment of the premiums of any insurance policy, the Trustee may assign ownership of such policy to the beneficiary(ies) of the applicable Trust established hereunder this Will.

K. Upon the death of an insured or annuitant, the Trustee shall make all appropriate after-death elections with respect to insurance policies on the life of the insured, or third-party beneficiary contracts, then held by the Trust.

L. The Trustee shall make every reasonable effort to collect all sums made payable to the Trust or the Trustee under all life insurance policies, annuities, or other non-retirement third-party beneficiary contracts, which provide for death proceeds made payable to or owned by the Trust.

1. In collecting policy or death benefit proceeds, the Trustee may, in its sole, absolute and unreviewable discretion, exercise any settlement option that may be available under the terms of any life insurance policy, annuity contract or any other non-retirement third-party beneficiary contract.

2. The Trustee, in its sole, absolute and unreviewable discretion, may disclaim all or any part of the benefits of any life insurance policy, annuity contract, or other non-retirement third-party beneficiary contract that are payable to the Trust.

3. The Trustee shall not be liable to any beneficiary for any settlement option ultimately selected or for any decision regarding disclaimer of the benefits of any life insurance policy, annuity contract, or other non-retirement third-party beneficiary contract that are payable to the Trust.

M. The Trustee may institute proceedings, whether in law or equity, administrative or otherwise, to enforce payment of such proceeds.

The Trustee need not, except at its option, enter into or maintain any litigation or take action to enforce any payment until it has been indemnified to its satisfaction for all expenses and liabilities to which it, in its sole judgment, may be subjected.

The Trustee is expressly authorized, in its sole, absolute and unreviewable discretion, to adjust, settle, and compromise all claims that may arise from the collection of any death proceeds. The decisions of the Trustee shall be binding and conclusive on all beneficiaries.

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N. No person or entity that pays insurance proceeds to the Trustee as beneficiary shall be required to inquire into any of the provisions of the Trust or to see to the application of any such proceeds by the Trustee.

O. The receipt of the proceeds by the Trustee shall relieve the payor of any further liability as a result of making such payment.

ARTICLE NINE
EXECUTOR

I hereby appoint **MICHAEL EUGENE DOWTY** as the Independent Executor (as that term is defined in La. C.C.P. Art. 3396) of my estate, with seizin and without the necessity of posting any bond or security whatsoever. It is my wish that the Executor of my estate to have broad and reasonable discretion in the administration of my estate and to have all the powers permitted to an Independent Executor (as that term is defined in La. C.C.P. Art. 3396) by Louisiana state law; and to have the ability to do anything and everything that he or she deems to be in the best interest of my estate and the heirs thereof, without the need for court approval or supervision.

ARTICLE TEN
ALLOCATION OF ASSETS

In accordance with the provision of Article 1572 of the Louisiana Civil Code, I hereby expressly delegate to my Independent Executor the authority to select assets to satisfy the quantum or value as to any legacies made herein, either by formula or by specific sum. In the event I have forced heirs, my Independent Executor shall have the power to elect, select and determine which asset or assets belonging to me shall be used to satisfy the forced portion of any such forced heirs. Further, it is not my intention that the residuary legatees named herein shall receive their proportionate percentage in each and every asset forming the remainder of my Estate, but rather that they shall receive property or properties to be selected by my Independent Executor, which shall satisfy the respective percentages bequeathed to them of the remainder of my assets.

ARTICLE ELEVEN
EXECUTOR POWERS

In addition to the powers granted by La. C.C.P. art. 3396, *et seq*., which are specifically incorporated herein, my Independent Executor shall have all of the powers cited in this Article. To the extent there is any conflict between the powers granted under this Article, and those granted pursuant to Louisiana law, the provisions of this Article shall prevail. My Independent Executor shall have the following powers:

11.01 General Authority

Generally, my Independent Executor shall have the following authority to:

A. to hold any or all of my Estate in the form of investment in which it is received;

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B. to make distributions of principal to any Residuary Legatee, whether outright or in Trust as set forth in this Will;

C. to sell at public or private sale, to mortgage, pledge, or hypothecate, or to exchange or lease any stocks, notes, securities, financial holdings, or investments authorized herein, real estate (immovable property), minerals, and other property, upon such terms, cash or credit, or both, as my Independent Executor may deem advisable;

D. to invest and reinvest my Estate in investments of any kind, real or personal, including, without limitation, stocks, bonds, notes, mortgages, land, minerals, royalties, leaseholds, and participation in partnerships, joint ventures, and other business enterprises, and to write or purchase call or put options, and other derivative securities;

E. to construct, repair, or demolish any improvements upon any real or immovable property;

F. to participate in any reorganization, consolidation, merger, or dissolution of any company, corporation, or limited liability company, the stocks, bonds, or securities of which may be held at any time(s);

G. to hold investments, or any part of my Estate, in common or undivided interest with others;

H. to establish bank accounts of any type, at any banking institution my Independent Executor deems appropriate;

I. to demand, receive, provide receipt for, and collect all rights, money, properties, or claims to which my Estate may be entitled, and to compromise, settle, or abandon any claim in favor of, or against, my Estate;

J. to borrow funds in such amounts, and for such purposes, as my Independent Executor may deem proper, and to purchase property on the credit of my Estate, or in connection with such borrowing, to execute and deliver promissory notes, or other evidence of indebtedness, and to mortgage or pledge all or any portion of my Estate created hereunder, to secure payment of such indebtedness, and to repay such indebtedness;

K. to employ agents, legal counsel, accountants, financial advisors, brokers, and other professionals or consultants, including any acting Independent Executor who is also a professional, and to pay their fees and expenses, including expenses of an Independent Executor's professional service firm for services provided outside his or her capacity of serving as Independent Executor;

L. to serve as an officer, director, manager, or employee of any business entity in which my Estate has an interest, or to vote, in person or by proxy, on shares of stock or membership interest which may be a part of my Estate;

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M. to manage, control, operate, invest, reinvest, sell, exchange, lease, mortgage, encumber, and/or deal with the property of my Estate for, and on behalf of, my Estate, and the beneficiaries, to the same extent, and with the same powers, that any individual would have in respect to his or her own property.

11.02 Specific Authorization for Single Signature

Any bank, brokerage firm, insurance, or other financial institution, or any other third party doing business with my Independent Executor, is hereby authorized, upon the consent of the appointed Independent Executors, if more than one, to open any account in such a manner as to permit the transaction of any business upon the signature of either Independent Executor or a particular Independent Executor, rather than upon unanimous consent. To facilitate transaction of business, the joinder of an Independent Executor under this section may be indicated as to actions taken with regard to a particular investment account by my Independent Executor's signature on appropriate signature authorization forms. My Independent Executor's signature authorizing the other to act alone shall constitute that Independent Executor's joinder with all actions taken regarding the account, unless and until the signature authorization form is changed, or the bank, brokerage firm, insurance, or other financial institution, or any other third party doing business with my Independent Executor, is expressly notified in writing of my Independent Executor's withdrawal of concurrence.

11.03 Compensation of Executor

No individual serving as Executor shall be entitled compensation, other than reimbursement of expenses. Any bank, financial institution or trust company serving as Executor shall be entitled to receive the rate of compensation it customarily charges for rendering such services at the time such services are rendered. My Executor shall receive reimbursement for all expenses incurred in the administration of the Estate. All such compensation and expenses shall be charged first against ordinary income, then capital gains, then unrelated business taxable income, then tax-exempt income, and then, if income is insufficient, against principal; provided, however, no such charge shall violate the qualified subchapter S trust requirements of Section 1361(d)(3) of the Code.

ARTICLE TWELVE
TAX ELECTIONS

If at my death, an election is available with respect to assets which may receive a step up in basis pursuant to I.R.C. § 1014 or any other provision of the Internal Revenue Code, my Independent Executor shall have the authority to make such election and the election should be exercised so as to minimize the income tax consequences that would result upon future sale or disposition of the assets of my estate. I direct that in making such election, my Independent Executor or Independent Executor consider future use of assets and the availability of any exclusion from income taxes upon sale of specific assets, such as my primary residence, and make an election that is fair and equitable to my surviving spouse (if any) and my heirs and legatees. In the event at the time of my death I am married and my spouse survives me, I hereby authorize my Independent Executor to take whatever

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action is deemed necessary (if any), in the sole discretion of my Independent Executor, to assure that portability of my unused federal estate tax exemption, if any, is available to the estate of my surviving spouse (if any).

My Independent Executor shall incur no liability for determining whether or not to exercise the election to secure the marital deduction to my gross estate for Federal estate tax purposes, and, if so, to what extent. In case of reasonable doubt whether or not to exercise the election, my Independent Executor should normally exercise it, and in the case of reasonable doubt as to the extent to which the election should be exercised, my Independent Executor should normally exercise it to obtain a larger, rather than a smaller, marital deduction.

ARTICLE THIRTEEN
ATTORNEY FOR SUCCESSION

My Independent Executor shall have the authority to engage an attorney or law firm for my succession.

ARTICLE FOURTEEN
MISCELLANEOUS PROVISIONS AND DEFINITIONS

14.01 Miscellaneous Provisions

A. Collation

I declare that all gifts made by me during my lifetime to my Child or Children, if any, were given as extra portions and are not subject to collation.

B. Contest Clause

If any legatee shall in any manner, directly or indirectly, attempt to contest or oppose the validity of this Will, including any amendments thereto, or commences or prosecutes any legal proceedings to set this Will aside, then in such event such legatee shall forfeit his or her share, and shall be deemed to have predeceased without surviving issue.

C. Forced Heirship

In the event that any of my children or any of my grandchildren are determined to be my forced heirs at the time of my death and required by law to receive any portion of my estate, and if I am married and my Spouse survives me by thirty (30) days, then in that event, I leave to such child or grandchild the minimum portion of my estate that when added to my lifetime gifts to such child or grandchild will equal the minimum amount necessary to satisfy the forced portion required by law, to be computed by the formula established by law in effect at my death, with each such forced portion subject to a lifetime usufruct in favor of, and which I leave to, my Spouse. My Spouse shall not be required to provide bond or any security whatsoever for the usufruct, and shall have the power of disposition over non-consumables as well as consumables. If any property

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subject to the usufruct, including non-consumables, should be sold or otherwise disposed of during the existence of the usufruct, then the usufruct shall not terminate but shall attach to the proceeds of such sale or other disposition.

In the event that any of my children or any of my grandchildren are determined to be my forced heirs at the time of my death and required by law to receive any portion of my estate, and if my Spouse (if any) does not survive me by thirty (30) days and if the said forced portion is not otherwise satisfied by gifts made during my lifetime or by the bequests set forth hereinabove, then in that event, I leave to such child or grandchild that portion of my residuary estate which when added to gifts made during my lifetime and the bequests set forth hereinabove will equal the minimum portion of my estate necessary to satisfy the forced portion required by law, to be computed by the formula established by law in effect at my death.

D. Legatee Spouse's Rights

It is my intent that no spouse of any named legatee retain or have any right to any interest in this Will, unless specifically provided for in the Articles of this Will.

E. Notice

Whenever this Will calls for notice, notice shall be in writing and:

1. personally delivered, with proof of delivery; or

2. sent by certified mail, with return receipt requested; or

3. sent by commercial delivery service (Federal Express, UPS, etc.) with signature required; or

4. sent via electronic mail or other means, with verifiable proof of delivery and receipt.

Notices shall be sent to the last known address or location of the party requiring notice, unless otherwise stated. If the notice is personally delivered, notice shall be effective on the date delivered. If the notice is sent by certified mail, the notice shall be effective when the return receipt is received by the sending party (or, in the absence of a return receipt, on the date the return receipt would normally have been received). If notice is sent by commercial delivery service, the notice shall be effective when the letter/package is signed for. Notices sent by electronic mail or other verifiable means shall be effective on the date delivered and verified. If notice is sent to a minor or incapacitated individual, notice shall be given to the minor's parent, or the incapacitated individual's legal representative.

Stephanie Beals Swaney, Testatrix

14.02 Headings of Articles, Sections, and Subsections

The headings of Articles, Sections, and Subsections used within this Will are included solely for the convenience and reference of the reader. They have no significance in the interpretation or construction of this Will. Any reference made to "this Article" or "this Section" shall refer to the article or section in which the reference is made. Any reference made to an "Article" of this Will in any document shall refer to said "Article" hereunder.

14.03 Incapacity

Except as otherwise provided in this Will, any individual may be treated as legally incapacitated or disabled if:

A. the individual has disappeared or is absent for unexplained reasons for more than six (6) months, or the individual is being detained under duress where the individual is unable to effectively manage his or her property or financial affairs; or

B. a person shall be deemed disabled if he or she meets the definition of disability under the Social Security Administration's definition or Louisiana's Workers' Compensation definition. A person shall be presumed disabled if he or she is receiving disability benefits under Social Security, a private insurance policy or Workers' Compensation.

C. Any determination of disability under this provision shall be made at the sole, absolute and unreviewable discretion of the Trustee pursuant to any powers granted to them in regard to disability under any Trust created by this Will.

14.04 Incompetency

Except as otherwise provided in this Will, any individual may be treated as incompetent if:

A. the individual has been declared or adjudicated as such by a court of competent jurisdiction; or

B. a curator, guardian, conservator, or other personal representative of such individual's person or estate has been appointed by a court of competent jurisdiction; or

C. the individual has been certified as such in writing by at least two licensed physicians.

14.05 Number and Gender

The masculine, feminine, and neuter gender, and singular and plural number, shall each be deemed to include the other, when the context so indicates.

____
Stephanie Beals Swaney, Testatrix

14.06 Partial Invalidity Clause

If any provision of this Will is void, invalid, or unenforceable, then the remaining provisions shall nevertheless be valid.

14.07 Powers are Personal

Each power and right granted to a legatee, under this Will (including the power to exercise a power of appointment) is personal, and may not be exercised by another, except that during such time the power holder is unable to act, said powers and rights may be exercised by either (a) the power holder's tutor, curator, guardian or conservator, acting by authority of a court; or (b) the power holder's agent, as granted by a properly executed durable power of attorney that specifically authorizes said agent to exercise such power or right.

14.08 Survivorship Presumption

If I die under circumstances in which the timing of my death, or that of a legatee, cannot be established, then I will be deemed to have survived said legatee. If any legatee is living at my death, but dies within ninety (90) days after my death, said legatee shall be deemed to have predeceased me, for purposes of any distribution to said legatee hereunder.

14.09 Definitions

A. Blood Relative

"Blood Relative" includes the existing, adopted, or after-born child, grandchild, sibling, parent, aunt, uncle, niece, nephew, grandparent, cousin, and issue of any of the foregoing of an individual.

B. Child or Children

"Child" or "Children" includes existing and after-born children. In applying the provisions of this Will, a legally adopted child and his or her lineal descendants, are to be considered lineal descendants of the adoptive parent and that parent's lineal descendants, as well as blood relatives for purposes of defining a "Family Member."

C. Education

"Education" is intended to be an ascertainable standard in accordance with Code Sections 2041 and 2514, and shall include, but not be limited to, enrollment at a private elementary, junior, or senior high school including boarding school; undergraduate and graduate study in any field at a college or university; specialized, vocational, or professional training or instruction at any institution, including private instruction; and any other curriculum or activity the Trustee may deem useful for developing the abilities

Stephanie Beals Swaney, Testatrix

and interests of a beneficiary, including (without limitation) athletic training, musical instruction, theatrical training, the arts, and travel.

"Education" shall also include distributions made by the Trustee for expenses such as tuition, room and board, fees, books and supplies, tutoring and transportation, and a reasonable allowance for living expenses.

D. Family Member

“Family Member” as used in my Last Will and Testament shall include blood relatives of the Testatrix or Testatrix’s Spouse.

E. Special Bequest

A special bequest refers to any gift or donation given to a particular recipient by reason of the Testatrix’s death, whether outright or in trust.

F. Spouse or Surviving Spouse

Unless otherwise specified, “Spouse” or “Surviving Spouse” refers to the person to whom an individual is married, and with whom the individual is living as husband or wife, when such person would, pursuant to the terms of this Will, become entitled to any benefit hereunder, and with whom the individual is living as husband or wife at the time of his or her death.

[REMAINDER OF PAGE LEFT BLANK INTENTIONALLY]

[SIGNATURES ON FOLLOWING PAGE]

____

Stephanie Beals Swaney, Testatrix

This Last Will and Testament has been signed at _______________, Louisiana, on this _____ day of _________________, 20__.

____

STEPHANIE BEALS SWANEY, Testatrix

In our presence, the Testatrix, **STEPHANIE BEALS SWANEY**, has declared and signified that this instrument is her testament and has signed it at the end and on each other separate page, and in the presence of the Testatrix and each other we have hereunto subscribed our names this _____ day of _________________, 20__.

WITNESSES:

____

PRINTED NAME: __________________

____

STEPHANIE BEALS SWANEY, Testatrix

____

PRINTED NAME: __________________

____

NOTARY PUBLIC

Printed Name: ____

Notary / Bar Roll Number: ________________________________

_______________, _____________ County/Parish, ______

My Commission expires: ___________________________________

____

Stephanie Beals Swaney, Testatrix